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IN THE SIXTH DISTRICT COURT OF APPEAL
STATE OF FLORIDA

ROSALINA RODRIGUEZ and JACKSON REAL ESTATE GROUP, LLC A/K/A JACKSONS REAL ESTATE GROUP, LLC

Appellant(s),

Case No. 6D2025-0842

v.

L.T. NO.: 23-CA-013348

HARBOUR POINTE CONDOMINIUM ASSOCIATION, INC.

Appellee(s).

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# APPELLANTS' REPLY BRIEF

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## ARGUMENT OF REPLY BRIEF

### I. INJUNCTIVE RELIEF WAS NOT APPROPRIATE BECAUSE THE ASSOCIATION DID NOT SATISFY EACH ELEMENT WITH COMPETENT SUBSTANTIAL EVIDENCE

To obtain a permanent injunction, the party seeking it must "establish a clear legal right, an inadequate remedy at law and that irreparable harm will arise absent injunctive relief." *K.W. Brown & Co. v. McCutchen*, 819 So. 2d 977, 979 (Fla. 4th DCA 2002). The Association failed to establish any of these elements: (1) Appellants violated no clear legal right; (2) the Association made no showing of threatened irreparable harm; and (3) the Association had an adequate remedy at law. In addition, the mandatory injunction did not serve the public interest.

The Association argues that it "had no option but to seek an injunction ordering the Appellant to allow the association and its agents and contractor access to their units for inspection, **TESTING** and remediating" (Appellee's Answer Brief at 29) (emphasis added). There was no evidence presented that the association or its members would suffer irreparable harm. The Association presented no evidence to the Court of the testing done to reach the conclusion of

harmful bacterial growth. There was no evidence presented to the Court to reach the conclusion that whatever was found behind the drywall in other units was in fact dangerous. There was no evidence even of the type of bacterial growth found behind the drywall of surrounding units and how said bacterial growth if not removed would cause harm to human health or the Association's common elements.

1. Appellants did not violate a clear legal right as there was no competent evidence supporting the Association's request to enter and conduct additional destructive testing on the units.

Though Chapter 718 and the Association's Declaration may have obligated the Association to repair and reconstruct the Condominium after a casualty event and may have given the Association irrevocable access, there was no showing of the need for the association to enter the units to do destructive testing. There has been no competent testimony or evidence presented to show that the destructive services of the Association's contractors were required in Units 914 and 917 owned by the Appellants.

The Association erroneously argues that Appellants violated the Association's clear legal right to access the units, as the Association always had access and did in fact access the two units and conducted

mapping. On December 17, 2022, the Association's contractor, Flood Zone, entered Units 914 and 917 without requiring permission from the Homeowners, exercising the Association's irrevocable right of access, and conducted moisture mapping of both units (R. 1050–1074). Following that inspection, Association Board President David Meiser advised the Homeowners by email on December 30, 2022, that he had reviewed the moisture mapping report and "did not see any moisture issues that will require remediation" (R. 620). This was approximately three months after Hurricane Ian's landfall.

On February 21, 2023, President Meiser further communicated to the Homeowners requesting that they provide the Association with test results from a Florida-licensed and certified mold mitigation firm, advising that the "Association is willing to review that information in connection with its activities in this matter" (R. 621). On March 3, 2023, Board Director Bill Goodman confirmed that other units had been cleared based on owner-provided engineering reports and invited the Homeowners to do the same (R. 631).

The evidence reflects that at the Association's request, the Homeowners retained a licensed mold assessment company, EMLS Analytical, Inc., which conducted testing on March 9, 2023 (R. 902–

930). The report concluded that "[b]ased on the data obtained in the Mold Assessment and Visual Inspection to the property, there is no clear evidence of water intrusion or water presence. Results on air samples came out with low contamination of a few mold types, but at these levels do not represent a threat to health issues" (R. 924). These results were promptly provided to the Association.

The results confirmed:

- No evidence of water intrusion;
- No active moisture conditions; and
- Mold levels within acceptable, non-hazardous limits (R. 902–930).

The demanded destructive testing of the Units was requested at a time when no emergency existed, long after Hurricane Ian's landfall, and after various testing by the Association and the Homeowners showed that there was no need for remediation efforts in Appellants' two units.

Furthermore, the Homeowners did not block or impede the Association's access to the units. The dispute was never about access; it was about whether destructive testing was necessary, and the Association never proved that it was.

This was confirmed at trial. Association witness Sid Van Der Meer testified:

> "Q. But you already testified that the board didn't need his permission to access the units?" (T. 165)
>
> "A. No, we didn't need permission to access the units." (T. 165)
>
> "Q. Do you agree that the Association had the irrevocable right to access; they didn't need Mr. and Ms. Rodriguez's permission?" (T. 167)
>
> "A. Correct." (T. 167)

There was no emergency and no proof or evidence provided of irreparable harm to the Association's members or common elements. The evidence further established that no occupants resided in the units surrounding Units 914 and 917 at the time of the proceedings (T. 3–18). The Association presented no mold testing, no moisture evidence, and no expert testimony demonstrating any ongoing threat to health, safety, or property. The only competent expert evidence before the trial court was Appellants' licensed reports, which found no clear evidence of water intrusion or water presence and only low levels of mold that did not represent a threat to health (R. 902–930).

The Association's own contractor acknowledged that the Association's concern was not mold, but rather drying out units for "potential" bacterial contamination from water (T. 183). There was no evidence that, long after Hurricane Ian, the units needed to be dried out for "potential bacterial contamination." The contractor further conceded that the roof had since been replaced and all potential points of water entry sealed (T. 97). Appellants' March 2023 testing, conducted less than six months after Hurricane Ian's landfall, confirmed the absence of water intrusion.

2. The Association will not suffer irreparable harm if access is not granted.

There is no competent substantial evidence to support the trial court's conclusion that the Association would suffer irreparable harm. To the contrary, the Association's witness, Logan York of Flood Zone, never provided testimony or evidence of the presence of any type of bacteria that was found near the electrical panels and in the air handlers of other units that were previously demolished. There was no evidence presented by Logan York or any of the Association's witnesses of the alleged contamination from storm waters that had intruded into the other units, no evidence of any dangerous bacteria

that was found in the other units after testing, no evidence of any testing done by the Association or its contractors to show that there was any danger present or otherwise that would cause the Association to suffer irreparable harm. Though York explained that a mold assessment was not a valid method for testing for contaminated water, he made no mention of the tests performed by Flood Zone to reach the conclusion that there was ever any contaminated water present or that there was any dangerous bacteria present in any of the units previously demolished without any testing.

There was no competent substantial evidence of what dangerous bacteria was being remediated or any other evidence to support irreparable harm.

3. The Association had an adequate remedy at law.

The trial court erred in granting injunctive relief because the Association possessed an adequate remedy at law under both the Declaration and the Florida Condominium Act, which independently preclude equitable relief.

The Association, by its own pleadings, acknowledged that it had an available remedy at law (R. 003). Here, Section 11.1 of the

Declaration expressly grants the Association "the irrevocable right of access to each Unit" as necessary for maintenance, repair, or prevention of damage to the common elements or other units. The Association does not need to petition a court to exercise a right it already possesses by operation of both contract and statute. Section 718.111(5)(a), Florida Statutes, provides the same irrevocable right of access during reasonable hours when necessary for the maintenance, repair, or replacement of common elements, or to prevent damage to common elements or other units.

These provisions constitute adequate remedies at law. The Association's own representative confirmed at trial that the Association held a master key to the units and did not require the Homeowners' permission to access them (T. 163:18–19; T. 165:18; T. 166:23–25; T. 167:1). Where access is already available as a matter of right, there is no basis for a court to grant injunctive relief compelling the same access. As the Association had an adequate remedy at law, its complaint failed to state a cause of action for injunctive relief and should have been dismissed.

The case before the court is distinguished from *Hollywood Towers Condo. Ass'n, Inc. v. Hampton*, 40 So. 3d 784, 786–87 (Fla.

4th DCA 2010). In the case before this court, the Association demolished over 138 units all allegedly showing bacterial growth and water intrusion. In all the units demolished, the Association provided no evidence of any harm that would be faced to its Units or common area if demolition had not occurred. It provided no evidence of the contamination that was allegedly present in the other units. Here, the Association had already inspected these units. This was never the case in *Hampton*. *Id.*

For the Association's action in entering a condominium unit to be valid, it must be (1) within the association's authority and (2) reasonable. *Id*. Seeking to conduct destructive testing long after the underlying event, with no current evidence of damage or ongoing threat, is neither within the authority of expired emergency powers nor reasonable as a matter of law.

4. The Mandatory Injunction is not in the public's best interest**.**

There was no competent substantial evidence presented regarding bacteria and other types of microbial growth in the other units tested, the types of microbial or bacteria growth that were found or even the potentially major damage to the condominium.

The trial court's findings of fact, even clothed in the presumption of correctness, are unsupported by competent substantial evidence. Speculation about the possible future emergence of mold or bacterial growth, offered without any supporting testing or data, is legally insufficient to establish the irreparable harm necessary to support injunctive relief, because "injunctive relief is available to prevent a threatened harm but is not available to redress harm which has already occurred." *Dolgencorp, Inc. v. Winn-Dixie Stores, Inc.,* 2 So. 3d 325, 327–28 (Fla. 4th DCA 2008). The court further explained that "an injunction will not be granted where it appears that the acts complained of have already been committed and there is no showing by the pleadings and proof that there is a reasonably well grounded probability that such course of conduct will continue in the future . . . ." *Id.* The only competent evidence before the trial court was Appellants' report from EMLS Analytical, Inc., a licensed mold assessment company, which concluded that there was no clear evidence of water intrusion or water presence and no threat to health (R. 924), and the Association's own December 17, 2022 moisture

mapping by its contractor, Flood Zone, which President Meiser reported on December 30, 2022 showed no moisture issues requiring remediation (R. 1050–1074).

## II. INJUNCTIVE RELIEF WAS NOT PROPER BECAUSE THE ASSOCIATION DID NOT ESTABLISH ACCESS WAS NECESSARY.

The Association provided no evidence to support York's testimony. The Association never tested the other properties for mold, never tested them for the alleged contaminated water, never tested or provided evidence of the alleged harmful bacterial growth that was located in the other units. York testified that there was a high probability of damage and bacteria near the electrical panels and air handlers in Appellants' units (T. 96). Yet the Association's own moisture mapping of those same units, performed approximately three months after Hurricane Ian's landfall, showed no moisture issues requiring remediation (R. 1050–1074).

The Association did not establish irreparable harm as there is no evidence of irreparable harm to the health, welfare, and property of neighboring units that may be in jeopardy if any existing damage is not repaired. Nowhere in the evidence before the court is there made any mention of the type of "harmful" bacteria growth that was

allegedly present in the other units, no testimony as to any change in circumstances that would jeopardize the health, welfare and property of neighboring units in the event of a new water event. There was never any testing done by the Association or placed into evidence to determine that the bacterial growth was harmful, active, or could become active.

## III. THE TRIAL COURT ERRONEOUSLY HELD THAT THE ASSOCIATION'S ACTIONS WERE SUPPORTED BY THE EMERGENCY POWERS IN THE CONDOMINIUM ACT AND GOVERNING DOCUMENTS.

The Association sought to invoke "emergency powers" under § 718.1265 of the Florida Condominium Act and its general right of access under § 718.111(5) and Section 11.1 of the Declaration. However, by the time the injunction was sought and entered, the state of emergency had long since expired, and the factual predicate for emergency relief no longer existed.[1]

[1] 718.1265 Association emergency powers. —

(1) To the extent allowed by law, unless specifically prohibited by the declaration of condominium, the articles, or the bylaws of an association, and consistent with s. 617.0830, the board of administration, in response to damage or injury caused by or anticipated in connection with an emergency, as defined in s. 252.34(4), for which a state of emergency is declared pursuant to s. 252.36 in the locale in which the condominium is located, may exercise the following powers: …

(j) Mitigate further damage, injury, or contagion, including taking action to contract for the removal of debris and to prevent or mitigate the spread of fungus or contagion, including, but not limited to, mold or mildew, by

The Association's invocation of emergency powers under § 718.1265 was legally unsustainable. Emergency powers are, by their very nature, temporally limited. They exist to address conditions arising from a declared emergency and expire when the emergency ends. The statute itself provides that the special powers authorized under subsection (1) "shall be limited to that time reasonably necessary to protect the health, safety, and welfare of the association and the unit owners" and "shall be reasonably necessary to mitigate further damage and make emergency repairs." § 718.1265(2), Fla. Stat. By

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> removing and disposing of wet drywall, insulation, carpet, cabinetry, or other fixtures on or within the condominium property, even if the unit owner is obligated by the declaration or law to insure or replace those fixtures and to remove personal property from the unit.

Section 252.34(4), Florida Statutes, defines "Emergency" as any occurrence, or threat thereof, whether natural, technological, or manmade, in war or in peace, which results or may result in substantial injury or harm to the population or substantial damage to or loss of property.

Article 21 of the Declaration provides, in pertinent part, as follows:

> 21. Emergency Powers.
>
> 21.1 Additional Board Authority. In addition to the other authority granted by law and the Condominium Documents, the Board has the following power and authority in connection with emergency conditions: …
>
> 21.1.3. To mitigate damages including taking action to prevent the spread of fungus (including, but not limited to, mold and mildew) including tearing out drywall and carpet (even if the Unit Owner is obligated to insure and/or replace those items) and removing personal property from the Unit and disposing [of] damaged property or storing such property on-site or at an offsite location, with Unit Owners responsible for reimbursing the Association for items for which the Unit Owner is responsible but which may be necessary to prevent further damage. The Association bears no liability for such actions, if take[n] in good faith.

the time the Association sought injunctive relief, the state of emergency had long expired, and Appellants' licensed testing confirmed the absence of any ongoing emergency condition. The statutory authority simply did not support the relief granted.

## IV. THERE WAS NO COMPETENT SUBSTANTIAL EVIDENCE SUPPORTING THE COURT'S FINDING THAT THE ASSOCIATION DID NOT ENGAGE IN UNREASONABLE DELAY

Hurricane Ian made landfall on September 28, 2022. On December 17, 2022, the Association's contractor accessed Units 914 and 917 using the Association's master key and performed moisture mapping and inspections (R. 1050–1074). Following that inspection, Association Board President David Meiser advised the Homeowners by email on December 30, 2022, that he had reviewed the moisture mapping report and "did not see any moisture issues that will require remediation" (R. 620).

The Association then invited the Homeowners to clear their units with their own licensed testing, as other owners had done (R. 621, 631), and the Homeowners promptly provided the March 9, 2023 EMLS Analytical report, which found no clear evidence of water intrusion or water presence (R. 924).

The Association's own contractor acknowledged that the Association's concern was not mold, but rather drying out units for "potential" bacterial contamination from water (T. 183). The contractor further conceded that the roof had since been replaced and all potential points of water entry sealed (T. 97). Appellants' testing confirmed the absence of water intrusion.

Notwithstanding this testing and the Association's own initial findings, the Association changed course, abandoned its prior protocols, and demanded that its contractor conduct destructive testing of the units, long after Hurricane Ian's landfall.

The Association's unreasonable delay, combined with the Homeowners' proactive licensed testing and the absence of any current evidence of damage, precludes the equitable relief granted by the trial court. The Homeowners did precisely what the Association's Board directed them to do and did it well. To grant injunctive relief under these circumstances was an abuse of discretion.

In the case before the Court, the Association's delay was not six or eight months, but more than 12 months after Hurricane Ian's landfall, and came only after the Homeowners' licensed testing had

confirmed that no remediation was needed. The Association delayed filing suit until after the Homeowners had done everything the Association asked of them.

## VI. THE ASSOCIATION DID NOT PREVAIL ON ALL COUNTS AND WAS NOT ENTITLED TO AN AWARD OF ATTORNEY'S FEES.

The Association did not prevail on all counts. The Association sought an injunction long after Hurricane Ian's landfall, yet it provided no competent substantial evidence of any ongoing emergency under section 718.1265 or of irreparable harm. The Association's Complaint, with the Declaration attached as an exhibit, established the existence of an adequate remedy at law, the irrevocable right of access, on the face of its own pleadings. Because the trial court should have dismissed the Complaint at the outset, the Association cannot be considered the prevailing party. The award of attorney fees and costs must be reversed. *Mauriello v. Prop. Owners Ass'n of Lake Parker Estates*, 337 So. 3d 484, 487 (Fla. 2d DCA 2022); *Alorda v. Sutton Place Homeowners Ass'n, Inc.*, 82 So. 3d 1077, 1080 (Fla. 2d DCA 2012).

The Association's argument that Appellants' cases are vastly dissimilar (Appellee's Answer Brief at 40) is without merit as they go

to the essence of the availability of adequate remedy at law. The Declaration before this Court provides an adequate remedy at law. Furthermore, there has been no violation of the Declaration or the statutes. The award of attorney's fees and costs must be reversed. *See Mauriello*, 337 So. 3d at 487; *Alorda*, 82 So. 3d at 1080.

## CONCLUSION

For all of the foregoing reasons, this Court should reverse the Final Judgment and Permanent Injunction in all respects, direct the trial court to dismiss the Association's Complaint, and vacate the award of attorney's fees and costs.

Respectfully Submitted,

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## CERTIFICATE OF SERVICE

**I HEREBY CERTIFY** that a true and correct copy of the foregoing Reply Brief was submitted via e-portal and furnished via electronic notification to Attorney for Appellee, Lilliana M. Farinas-Sabogal, Esq., Becker & Poliakoff, P.A. at lfarinas@beckerlawyers.com; mlopez@beckerlawyers.com; CourtMail@beckerlawyers.com; on this 16th day of October 2026.

*/s/ Christian Savio*

CHRISTIAN SAVIO, Esq.

## CERTIFICATE OF COMPLIANCE WITH WORD COUNT AND FONT STANDARDS

The undersigned hereby certifies that this Reply Brief complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b) and the word-count limit of Rule 9.210(a)(2), and contains 3,434 words, excluding the portions exempted by Rule 9.045(e). Undersigned counsel certifies that this computer-generated document has been prepared using Bookman Old Style, 14-point font.

*/s/ Christian Savio*
CHRISTIAN SAVIO, Esq.